

25STCV26451 25STCV26451

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV26451 Hearing Date: July 31, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

CHARMAINE BLAKE,

Plaintiff,

vs.

UBER TECHNOLOGIES, INC., et al.

Defendants

Case

No.:

25STCV26451

Hearing

Date:

July 31, 2026

[TENTATIVE] ORDER DENYING
MOTION TO COMPEL ARBITRATION

I. BACKGROUND

Plaintiff Charmaine Blake

(“Blake”) rode in the right rear passenger seat of Defendant Suren Karapetyan’s (“Karapetyan”) vehicle as a paying customer of Defendant Uber Technologies, Inc. just after midnight on October 2, 2023. As Karapetyan operated his vehicle, Defendant GARRETT was operating his own vehicle, and the two violently collided in the intersection of Fountain Avenue and Fairfax Avenue in Los Angeles.

On September 10, 2025, Blake sued Defendants, alleging three causes of action including negligence against Uber and Defendants Rasier-Ca, LLC., And Rasier, LLC. (“Defendants Uber”).

On February 23, 2026, Defendants Uber filed the Motion to Compel Arbitration. Blake, Garret, and Brown filed oppositions. Uber field a reply.

II.

STATEMENT OF FACTS

In October 2023, Blake was riding as a paying customer in the backseat of an Uber rideshare operated by Defendant Karapetyan. (Complaint, September 10, 2025, ¶ 19). Defendant Karapetyan operated a 2022 Lexus ES300 bearing license plate number 9CSJ889 (“Lexus”) owned by Defendant Vahagn Rostomyan (“Rostomyan”). (Id. ¶ 2, 4). Defendant Jovan Brandon Garrett (“Garrett”) operated a 2022 Mercedes Benz S500 bearing license plate number 9AVV259 (“Mercedes”) owned by Defendant Keith Louis Brown (“Brown”). (Id. ¶ 3, 5). As Karapetyan and Garrett operated the vehicles, they collided in the intersection of Fountain Avenue and Fairfax Avenue in Los Angeles, causing serious injuries to Blake. (Id. ¶ 19, 20).

III.

LEGAL STANDARD

Under both the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and

enforceable, except on such grounds that exist at law or equity for voiding a contract. (Winter v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943, 947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc. § 1281.2.)

This is usually done by presenting a copy of the signed, written agreement to the court. “A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.” (Cal. Rules of Court, rule 3.1330.) The moving party must also establish the other party’s refusal to arbitrate the controversy. (§ 1281.2.) The filing of a lawsuit against the moving party for a controversy clearly within the scope of the arbitration agreement affirmatively establishes the other party’s refusal to arbitrate the controversy. (Hyundai Amco America, Inc. v. S3H, Inc. (2014) 232 Cal.App.4th 572, 577.)

“Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration ‘if the court determines that an agreement to arbitrate the controversy exists.’” (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 59 (Avery) (quoting § 1281.2).) “[T]he threshold questions presented by every motion or petition to compel arbitration are whether an agreement to arbitrate exists” (Ahern v. Asset Mgmt. Consultants, Inc., 74 Cal. App. 5th 675, 687 (2022).) Accordingly, “when presented with a petition to compel arbitration, the court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.” (Ibid.) A petition to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (Id. at 71.) As with any other specific performance claim, “a party seeking to enforce an arbitration agreement must show the agreement’s terms are sufficiently definite to enable the court to know what it is to enforce.” (Ibid. [internal citations omitted].) “Only the valid and binding agreement of the parties, including all material terms well-defined and clearly expressed, may be ordered specifically performed.” (Ibid.) An arbitration agreement “must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as

the same is ascertainable and lawful.” (Civ. Code § 1636.) The language of the contract governs its interpretation if it is clear and explicit. (Civ. Code § 1368.) If uncertainty exists, “the language of a contract should be interpreted most strongly against the party who caused the uncertainty to exist.” (Civ. Code § 1654.)

The

party seeking arbitration bears the preliminary burden of proving the existence of an applicable agreement to arbitrate. (Maxwell v. Atria Mgmt. Co., LLC, 105 Cal. App. 5th 230, (2024).) The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972.) It would then be the burden of the party opposing the motion to prove by a preponderance of the evidence any fact necessary to her opposition. (Ibid.) “In these summary proceedings the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination. (Ibid.)

Under California Code Civ.

Proc. § 1281.2, “[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that . . . “[a] party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action or special proceeding includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition,” then the court cannot order arbitration. (Cal. Civ. Proc. Code § 1281.2 (2019).) “If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the

pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding.” (Id.)

III. DISCUSSION

Defendants Uber argue this action is subject to arbitration as Blake entered into a valid arbitration agreement with Uber, agreeing to resolve any arising disputes via binding arbitration. (Uber Memorandum 09/10/25, p. 1-2). Thus, Uber contends Blake filing this action in state court violated this agreement. (Id.)

To use the Uber rideshare application, a user must create an account. (Kosinski Decl. p. 2, 12-13.) Blake registered for an account on June 4, 2021 and had to agree to the Terms of Use (“Terms”) from April 14, 2021 to use the application. (Uber Memorandum 09/10/25, p. 3, 4-7.) The Terms contained an arbitration agreement. (Id.) The Terms were updated multiple times since April 2021, and Blake had to confirm her agreement to the Terms twice to continue using the application, on April 2, 2022 and January 18, 2023, both before the incident. (Id. at 9-19.) Blake’s confirmation was in the form of clicking a checkbox agreeing to the Terms and clicking the “Confirm” button. (Id.) Once the button is clicked, a record of this consent is electronically captured, recorded, maintained and stored. (Kosinski Decl. p. 3, 23-24.) This record is linked to the user’s unique identifier associated with the user’s email address and/or mobile telephone number used to access the Uber platform. (Uber Memorandum 09/10/25, p. 3, 9-19).

For the Court to grant a motion to compel arbitration, the moving party must demonstrate the existence of a valid arbitration agreement between the moving and refusing party, as well as the refusing party’s refusal to arbitrate the controversy. (§ 1281.2.) Defendants Uber argue that Plaintiff agreed to the Terms and thus agreed to delegate to the arbitrator the threshold questions of whether the case is subject to arbitration, explicitly holding that “the arbitrator...and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Arbitration Agreement.” (Uber Memorandum 09/10/25, p. 4, 2-5.)

The Terms, in pertinent part, read:

“you and Uber agree that any dispute, claim or controversy in any way arising

out of or relating to” (i) these Terms; (ii) Plaintiff’s access to Uber’s Services; or (iii) incidents or accidents resulting in personal injury.” (Id. at p. 4, 13-15.) Because the incident arose out of Defendant Karapetyan acting within his alleged employment and/or agency relationship with Uber, Plaintiff’s claims fall squarely within the scope of the Arbitration Agreement such that this dispute must be ordered to arbitration. (Id. at 9-13.)

The Terms also state:

“The parties agree that the arbitrator (“Arbitrator”), and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Arbitration Agreement, including any claim that all or any part of this Arbitration Agreement is void or voidable. The Arbitrator shall also be responsible for determining all threshold arbitrability issues, including issues relating to whether the Terms are applicable, unconscionable or illusory and any defense to arbitration, including waiver, delay, laches, or estoppel. If there is a dispute about whether this Arbitration Agreement can be enforced or applies to a dispute, you and Uber agree that the arbitrator will decide that issue.” (Kosinski Decl., Exhibit D.) (Id. at p. 10, 14-21.)

It is accordingly evident that the agreement between Uber and Blake is an arbitration agreement binding the parties. Uber has met its burden of demonstrating the existence of an arbitration agreement between parties and that this action is with the scope of the arbitration agreement. Uber has also demonstrated a refusal by Blake to arbitrate claims. Uber has met its initial burden.

B. Delegation Clause

Uber argues the Court may not evaluate the applicability of the arbitration agreement, as parties agreed to delegate all issues regarding interpretation, applicability, or enforceability of the arbitration agreement. Parties may agree that arbitrators have jurisdiction to decide whether arbitration provisions are enforceable, but such language must provide so “clearly and unmistakably.” (Parada v. Superior Court (2009)

176 Cal.App.4th 1554, 1566.) “A delegation clause will be given effect when there is a plausible argument that the arbitration agreement requires the merits of the claim to be arbitrated, and cases where an assertion of arbitrability is ‘holly groundless’ are exceptional.” (Smythe v. Uber Techs., Inc. (2018) 24 Cal.App.5th 327, 332.)

The updated agreement, in pertinent part, provides as follows:

“The parties agree that the arbitrator (“Arbitrator”), and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Arbitration Agreement, including any claim that all or any part of this Arbitration Agreement is void or voidable. The Arbitrator shall also be responsible for determining all threshold arbitrability issues, including issues relating to whether the Terms are applicable, unconscionable or illusory and any defense to arbitration, including waiver, delay, laches, or estoppel. If there is a dispute about whether this Arbitration Agreement can be enforced or applies to a dispute, you and Uber agree that the arbitrator will decide that issue.” (Mot., Kosinski Decl. ¶ 15, Ex. D.)

The updated agreement clearly outlines parties agree to delegate all issues regarding enforcement, interpretation, applicability, and formation of the arbitration agreement to the arbitrator. As Blake's claims clearly fall within the scope of the arbitration agreement, the Court finds the delegation clause is binding.

Blake does not dispute the validity of the delegation^[1] clause but instead argues it is inapplicable to the Court's analysis and application of section 1281.2, subdivision (c). The Court disagrees. Unless a party makes a direct challenge in court as to the enforceability of an arbitrator-delegation clause, the arbitrator must resolve all issues encapsulated by the clause. (Mendoza v. Trans Valley Transport (2022) 75 Cal.App.5th 748, 767.) This includes the application of statutory law that would grant the Court discretion to deny a motion to compel arbitration.

C. Non-Parties
to the Arbitration Agreement

Blake argues that there are four Defendants who are non-parties to the Arbitration Agreement, meaning arbitration cannot be compelled. Defendants Karapetyan (the Uber driver), Rostomyan (Karapetyan's vehicle owner), Garrett (the driver of the second vehicle), and Brown (Garrett's vehicle owner) are all individuals that have been sued by Blake. (Blake Opposition at pp. 9-11.) These four Defendants did not sign Uber's Terms. (Id.) Garrett argues he never agreed to any arbitration terms. (Garrett Opp at pp. 2, 24.) Garrett argues he has a Constitutional right to trial by jury that he did not waive, and thus he opposes the Motion to Compel Arbitration. (Id. at pp. 3, 4-5, 13-15.)

Uber's Terms included an arbitration clause at the time in question. However, the Court does not find there is sufficient evidence to establish the other Defendants signed this agreement and agreed to the pertinent terms. "The petitioner bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination. [Citation.]" (Ruiz v. Moss Bros. Auto Grp. (2014) 232 Cal. App. 4th 836, 842.)

Defendants Uber are not the only parties being sued by Blake. Blake thus contends that her right to a jury trial against the four non-Uber defendants is unaffected by Uber's arbitration agreement. (Blake Opp. p. 1, 17-18.) Blake also argues that compelling arbitration would expose her to irreconcilable comparative fault apportionments from two different forums under Civil Code §1431.2(a). (Id. at 24-28.)

While Cal. Civ. Proc. Code § 1281.2 does not require the denial of this Motion, "[t]he general rule is that one must be a party to an arbitration agreement either to be bound by or to invoke it." Ford Motor Warranty Cases, 17 Cal. 5th 1122, 1128 (2025). A third party must consent to arbitration. (Id. at 1129.) As shown above, Defendants Garrett and Brown expressly have not, nor have Defendants Karapetyan or

Rostomyan.

Uber's Terms may indicate third parties are held to its provisions. The Terms state:

“(5)

Application to Third Parties: This Arbitration Agreement shall be binding upon, and shall include any claims brought by or against any third parties, including but not limited to your spouses, heirs, third-party beneficiaries and assigns, where their underlying claims arise out of or relate to your use of the Services. To the extent that any third-party beneficiary to this agreement brings claims against the Parties, those claims shall also be subject to this Arbitration Agreement.” (Kosinski Decl. Exhibit B.)

However, there is no express agreement to arbitration from the non-Uber Defendants. (See id. (“nothing in the agreement between plaintiffs and the seller dealers expressed an intent to empower third parties to invoke the arbitration clause”)). “Although California has a strong policy favoring arbitration [citations], our courts also recognize that the right to pursue claims in a judicial forum is a substantial right and one not lightly to be deemed waived. [Citations.] Because the parties to an arbitration clause surrender this substantial right, the general policy favoring arbitration cannot replace an agreement to arbitrate. [Citations.] Thus, the right to compel arbitration depends upon the contract between the parties, [citations], and a party can be compelled to submit a dispute to arbitration only where he has agreed in writing to do so. [Citation.]’ [Citation.]” (Smith v. Microskills San Diego L.P. (2007) 153 Cal.App.4th 892, 896; Matthau v. Superior Court (2007) 151 Cal.App.4th 593, 598.) Accordingly, Defendants Garrett, Brown, Karapetyan, and Rostomyan are not included in the order compelling arbitration.

IV. CONCLUSION

Defendants Uber Technologies, Inc., Rasier-CA, LLC, and Rasier, LLC's Motion to Compel Arbitration is GRANTED. The Court stays the action as to Uber, Rasier-CA and Rasier while arbitration is proceeding.

Uber is ordered to give notice.

DATED: July 31, 2026

Hon.

Alexander C.D. Giza

Judge

of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
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- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Garrett also does not address the issue of delegation.

Superior Court of
California

County of Los Angeles

Department
730

CHARMAINE
BLAKE,

Plaintiff,

vs.

UBER TECHNOLOGIES, INC., et al.

Defendant

Case No.:

25STCV26451

Hearing

Date:

July 31, 2026

[TENTATIVE]

ORDER DENYING motion for protective
order

I. BACKGROUND

Plaintiff Charmaine Blake

("Blake") was a customer of Defendant Uber Technologies, Inc. ("Uber"). At the time of the incident, Blake was a passenger of a Lexus vehicle operated by Defendant Suren Karapetyan ("Karapetyan"). The Lexus vehicle collided with a Mercedes vehicle operated by Defendant Jovan Brandon Garrett ("Garrett") in the intersection of Fountain Avenue and Fairfax Avenue, in the city and county of Los Angeles.

On May 28, 2026, Blake
filed the motion for issuance of discovery protective order pursuant to Code of
Civil Procedure section 2025.420 and 2032.520.

Defendants Garrett and
Brown opposed this motion. Blake replied.

II. STATEMENT OF FACTS

On October 2, 2023, at the intersection of Fountain Avenue and Fairfax Avenue in Los Angeles, Blake was a passenger in an Uber vehicle operated by Karapetyan. (Compl., September 10, 2025, ¶ 19.) The vehicle crashed into another vehicle operated by Garrett. Blake sustained serious personal injuries. (Compl., September 10, 2025, ¶ 20.)

On March 20, 2026, Defendant Garrett served a Notice of Demand for Physical Examination on Blake pursuant to section 2032.020. (Reply, July 16, 2026, p. 2, ¶ 4-5.) The Demand was later taken off-calendar. (Reply, July 16, 2026, p. 2, ¶ 14.)

Blake is unlicensed. (Mot. May 28, 2026, p. 3, ¶ 17.) She therefore cannot drive herself to any physical examination that might be requested by the Defendants and would have to arrange for other transportation. (Mot. May 28, 2026, p. 3, ¶¶ 16-17.)

III. LEGAL STANDARD

Under section 2032.220, subdivision (a), any defendant may demand one physical examination of the plaintiff, if (1) the examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive; and (2) the examination is conducted at a location within 75 miles of the residence of the examinee. As such, each individual defendant in a multi-defendant case holds an independent right to demand one such examination.

Section 2025.420, subdivision (a) provides that a protective order may be issued “for good cause shown” to regulate or limit a deposition or other discovery device. Section 2032.520 provides the same protection specifically for physical and mental examinations. Under section 2017.020, subdivision (a), courts must limit discovery where “the burden, expense, or intrusiveness...clearly outweighs the likelihood that the information sought will lead to the discovery of admissible

evidence.” California courts are granted broad discretion in such matters of limiting attempted discovery. (Greyhound Corp. v. Superior Court (1961) 56 Cal.2d 355, 379.) In Greyhound, the California Supreme Court held that courts must “weigh the relative importance of the information sought against the hardship which its production might entail” and the “relative ability of the parties to obtain the information.” (56 Cal.2d at 384.)

IV. DISCUSSION

Blake

requests the Court to issue protective orders pursuant to section 2025.420 and 2032.520, granting the following relief: (1) an order limiting all defendants collectively to a single physical examination of Blake; (2) an order limiting all defendants collectively to a single psychological examination of Blake; (3) an order that each non-corporate party deponent be deposed only once; and (4) an order that no deposition may be noticed or scheduled until all counsel have met, conferred, and agreed upon a date. (Mot. May 28, 2026, p. 1, ¶ 28, p. 2, ¶¶ 1-15.)

Under

section 2017.020, subdivision (a), if the plaintiff can show that the burden, expense, or intrusiveness outweighs the likelihood that the information sought will lead to the discovery of admissible evidence, the plaintiff may move the Court to issue protective orders.

A. Physical and Mental Examination

As

the moving party, Blake argues that there is good cause under section 2025.420 and 2032.520 to limit physical and psychological examinations of the Blake. The injury issues are singular and identical across all three defendant groups: what injuries did Blake sustain in the subject collision, what is the nature and extent of those injuries, and what is the prognosis? (Mot. May 28, 2026, p. 3, ¶¶ 10-12.) As such, it is unlikely that multiple independent examinations would yield materially different findings, and “there is no legitimate discovery purpose served by multiple physicians examining the same injuries from the same collision for the benefit of multiple defendant groups.” (Mot. May 28, 2026, p. 3, ¶¶ 13-15.) Given that Blake would have to undergo six separate examinations and arrange and pay for transportation each time (she has

no driver's license and does not drive), Blake asserts that the marginal discovery value of additional examinations is zero, as compared to the substantial burden placed upon the Blake. (Mot. May 28, 2026, p. 3, ¶¶ 20-26.)

Additionally,

Blake argues that under Evidence Code section 723, each expert doctor's evidence would likely be excluded as cumulative anyway. (Mot. May 28, 2026, p. 4, ¶¶ 7-14.) Evidence Code section 723 allows courts to exclude cumulative expert evidence at trial. Here, Blake asserts that each physician's examination would be of the same injuries and in response to the same questions, and hence, it is highly likely that the examinations would produce inadmissible testimony. (Mot. May 28, 2026, p. 4, ¶¶ 7-14.) Permitting cumulative examinations that are likely to be excluded "places more burden upon the adversary than the value of the information warrants." (Mot. May 28, 2026, p. 2, ¶¶ 22-23.)

Defendants

argue that Blake's motion is premature, as there are no requests for medical or mental examinations pending, nor are there notices for depositions pending. (Opp. July 15, 2026, p.2, ¶¶ 9-13.) Such a preemptive, blanket discovery order would prejudice Defendants by binding them to a particular litigation strategy and deprive them of their rights to choose their own experts. (Opp. July 15, 2026, p.4, ¶¶ 6-7.)

Defendants

also assert that Blake has failed to provide good cause to limit Defendants' basic discovery rights. With regards to claims of duplicity the exclusion of cumulative experts, Blake's argument wrongly assumes that each expert will come to the same conclusion. (Opp. July 15, 2026, p.2, ¶¶ 25-27.) This is speculative. (Opp. July 15, 2026, p.2, ¶¶ 25-27.) With regards to the burden that Blake has alleged, the fact that Blake is not licensed to drive should not impede upon Defendant's discovery rights. (Opp. July 15, 2026, p.3, ¶¶ 15-18.)

Blake

have failed to show good cause to limit Defendants' discovery rights. It is true that Blake's motion for a protective order is not premature, as Defendants previously filed a Notice of Demand for Physical Examination on Blake on March 20, 2026. (Reply, July 16, 2026, p. 2, ¶ 4-5.) Though Defendants argue that the Demand was later taken off-calendar, it does not negate the fact that discovery has been formally propounded. The motion was filed, the underlying request still exists, and the dispute remains concrete rather than hypothetical.

However,

while the motion for protective order is timely, it is not founded on good cause. Blake argues that under a rigid interpretation of 2032.220, each of the Defendants has an independent right to demand a medical examination of Blake, but that such an interpretation is divorced from the realities of a particular case. (Reply, July 16, 2026, p. 2, ¶¶ 20-22.) The inefficiency of fragmenting discovery schedule and consuming judicial resources is the exact kind that the Court can exercise discretion for to protect discovery. (Reply, July 16, 2026, p. 2, ¶¶ 23-28.) However, such inefficiency is only produced if the discovery is cumulative. Blake has named numerous Defendants, and as such, has provided an opportunity for each Defendant to call for a medical expert. (Opp. July 15, 2026, p.2, ¶¶ 25-27.) It is speculative to assume that each expert will come to the same conclusion, as by that logic, Blake should also share the same expert with Defendants. (Opp. July 15, 2026, p.3, ¶¶ 1-6.) Blake is not willing to waive her experts and any medical examinations, from which it can be inferred that she expects her expert will come to a different conclusion than the Defendants' expert. (Opp. July 15, 2026, p.3, ¶¶ 1-6.) Blake refers to the judicial gatekeeping at every stage of mental examinations, namely that each mental examination beyond the first requires court approval and independent showing of good cause. (Shapira v. Superior Court (1990) 224 Cal.App.3d 1249.) That is not warranted here, as Defendants are not seeking to exceed their allotted one medical and one psychological exam. Discovery is therefore not duplicative, nor cumulative.

Additionally,

while the court must weigh Defendants' discovery rights against Blake's privacy interests and the burden of duplicative examination, here, the burden to Blake does not outweigh Defendant's discovery rights. Blake claims lack of transportation to the medical examinations, requiring her to Uber to the procedures. Being unlicensed is not a hardship recognized by California law, especially when the medical examinations are within 75 miles of the Blake's residence, as given under section 2032.220. Blake's claimed hardship is not one of geographic inaccessibility, nor her physical inability to attend the examination. Blake asserts that established case law recognizes burdens such as lack of transportation but fails to cite any case law. As such, it is part of the litigation process to find transportation to and from any physical examination if it is within a reasonable distance.

B. Depositions

Blake

next requests the Court order all non-corporate deponents be only deposed once, including in related case, Los Angeles Superior Court case no. 25STCV28773, Suren Karapetyan v. Brandon Jovan Garrett, et al.

The

Court finds no basis to grant the requested protective order in regard to this action. Section 2025.610, subdivision (a), already provides a mechanism with the same effect as the protective order: "[o]nce any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent." The Court may only grant leave to depose the same party upon a showing of good cause. So long as Blake attempts to meet and confer to find mutually agreeable deposition dates and serves deposition notice on all relevant parties, there should not be duplicitous depositions in this action. Blake may meet and confer with defendants to schedule one deposition of Blake that works for all defendants.

There

is no indication parties will not abide by the mechanism provided in Section 2025.610. Any speculation said section will not be sufficient is premature and without factual basis.

V. CONCLUSION

Plaintiff's motion for protective order is therefore DENIED. Plaintiff is ordered to give notice.

DATED:

July 31, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

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Superior Court of
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730

CHARMAINE
BLAKE,

Plaintiff,

vs.

UBER
TECHNOLOGIES, INC.; RASIER LLC.; RASIER-CA LLC.; SUREN KARAPETYAN; JOVAN
BRANDON GARRETT; VAHAGN ROSTOMYAN; KEITH LOUIS BROWN; and DOES 1 through 100,

inclusive,

Defendants.

Case No.:

25STCV26451

Hearing

Date:

July 31, 2026

[TENTATIVE]

ORDER GRANTING Motion to Consolidate

I. BACKGROUND

On September 10, 2025, Plaintiff Charmaine Blake ("Blake") filed a Complaint against Defendants Uber Technologies, Inc. ("Uber"), Rasier LLC., Rasier-CA LLC., Suren Karapetyan ("Karapetyan"), Jovan Brandon Garrett ("Garrett"), Vahagn Rostomyan ("Rostomyan"), and Keith Louis Brown ("Brown") alleging negligence against Uber, Raiser, Raiser-CA, Karapetyan, and Garrett. The Complaint also alleged negligent entrustment of a motor vehicle against Rostomyan and, separately, against Brown. In September, all defendants answered.

On March 10, 2026, Blake filed the instant motion to consolidate this action with Los Angeles Superior Court ("LASC") case no. 25STCV28773, designated this case as the lead case for consolidated proceedings. No party opposes the motion.

II. STATEMENT OF FACTS

The instant Complaint alleges that Blake was a paying customer and riding in an Uber operated by Karapetyan. Blake claims Karapetyan is an agent or employee of Uber. While riding in the vehicle, Karapetyan collided with another vehicle operated by Garrett. Each vehicle operator involved in the collision was permitted to use the vehicle by other parties; Rostomyan permitted Karapetyan and Brown permitted Garrett to use the vehicles they were operating.

On October 1, 2025, Karapetyan filed the complaint in case no.

25STCV28773 against Defendants Garrett and Brown. The defendants' answers in that case and in the instant case are almost identical, except for the singular addition of an affirmative defense in the related case. Each party in case no. 25STCV28773 are parties to the instant case, however, the moving party of the instant motion, Blake, is not a party in case no. 25STCV28773. The Court found the cases are related per the Court Order Re: Notice of Related Case on November 19, 2025. Blake later filed the instant unopposed motion to consolidate.

III. LEGAL STANDARD

California

Code of Civil Procedure section 1048, subdivision (a)[1], states:

"When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." Subdivision (b) states "[t]he court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action..." (Code Civ. Proc. § 1048(b).)

California

Rules of Court, rule 3.350, subdivision (a), provides:

"Requirements of motion (1) A notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated. (2) The motion to consolidate: (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and (C) Must have a proof of service filed as part of the motion." (Cal. Rules of Court, rule 3.350, subd. (a).)

Los

Angeles County Superior Court Local Rules rule 3.3, subdivision (g), provides:

“(1) Cases may not be consolidated unless they are in the same department. A motion to consolidate two or more cases may be noticed and heard after the cases, initially filed in different departments, have been related into a single department, or if the cases were already assigned to that department. (2) Upon consolidation of cases, the first filed case will be the lead case, unless otherwise ordered by the court. After consolidation, all future papers to be filed in the Consolidated case must be filed only in the case Designated as the lead case”

IV. DISCUSSION

A, Procedural Issue

California

Rules of Court, rule 3.350, subdivision (a) requires notice of a motion to consolidate be filed in every case sought to be consolidated.

(Cal. Rules of Court, rule 3.350, subd. (a)(1)(C).) Blake did not file notice of this motion in case no. 25STCV28773. Blake has failed to abide by the procedural requirements for this motion.

B. Merits

Blake

seeks to consolidate two cases that arise out of the same accident involving the same parties. When actions involving a common question of law or fact are pending before the court, a party may seek to consolidate them. (Code Civ. Proc. § 1048(a).) “A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions. [Citation.]” (Estate of Baker (1982) 131 Cal.App.3d 471, 485.) The court has discretion under section 1048 to define its scope as complete consolidation or for trial only. (Code Civ. Proc. § 1048(b).) “There are two types of consolidation: a complete consolidation resulting in a single action, and a consolidation of separate actions for trial. Under the former procedure, which may be utilized where the parties are identical and the causes could have been joined, the pleadings are regarded as merged, one set of findings is made, and one judgment is rendered. In a consolidation for trial, the pleadings, verdicts, findings and judgments are kept separate; the actions

are simply tried together for the sake of convenience and judicial economy.” (Sanchez v. Superior Court (1988) 203 Cal.App.3d 1391, 1396 (Sanchez).)

The

court may consolidate related cases involving common questions of law or fact to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048(a).) Blake argues that common questions of law and fact are both present in the instant related cases. (Mot. Consolidate (3/10/2026), pg. 6 ¶ 10, 24.) The facts “share the same collision, the same vehicles, the same drivers, the same intersection, and the same moment in time.” (Mot. Consolidate (3/10/2026), pg. 6 ¶ 9-10.) Both cases allege negligent operation of a vehicle and raise the issue of negligent entrustment of a motor vehicle. (Mot. Consolidate (3/10/2026), pg. 6 ¶ 24-26.) In response, Garrett and Brown’s joint answer in both cases show the commonality of the cases by having nearly identical answers in the instant case and related case; only adding one affirmative defense in the related case answer.

Additionally,

Blake claims that consolidation is necessary to avoid risk of inconsistent verdicts. (Mot. Consolidate (3/10/2026), pg. 6 ¶ 16-17.) If tried separately, these cases risk reaching opposite conclusions about the same factual incident. The Court finds the cases share common allegations and related questions of law. However, considering that the case filed in the instant action and the related action, it would not be appropriate to merge the pleadings in a complete consolidation. “In a consolidation for trial, the pleadings, verdicts, findings and judgments are kept separate; the actions are simply tried together for the sake of convenience and judicial economy.” (Sanchez, supra, 203 Cal.App.3d at 1396.) The instant action involves standards of care owed to rideshare passengers, as well as agency and vicarious liability claims, which do not apply to the related action. While the claims do arise out of the same occurrence, the damages in each case are distinct, and there are additional claims not present in the related case. Therefore, it would be more appropriate to consolidate the cases as separate actions for trial, such that the pleadings and judgments remain separate but are tried together for efficiency and consistency in the rulings.

Except

for the procedural issue, the Court would have granted the motion to consolidate the cases as indicated to ensure consistent rulings and avoid unnecessary costs or delay. Given the

lack of opposition and for judicial efficiency, the Court continues the motion to allow Plaintiff one opportunity to correct the procedural issue.

V. CONCLUSION

Plaintiff's

motion to consolidate is continued to the Court's next available hearing date.

Plaintiff is ordered to give notice.

DATED:

July 31, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.